

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

A business dispute is pending in court. One party has produced a digitally signed PDF agreement and a series of emails to prove that I accepted certain contractual terms. I believe the PDF may have been altered after I signed an earlier version and I dispute that the final document is genuine. What legal provisions govern the authenticity and admissibility of these digital records?

Job Id. : qwen3-30b/Scenario 13/Bharatiya Nyaya Sanhita (BNS), 2023

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Date : 29 August 2026

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 336 — Forgery

Only if someone intentionally made a false document/electronic record with the statutory fraudulent/injurious intent.

Section 340 (2) — Using a forged document or electronic record as genuine

Only if a person knowingly/fraudulently used a forged version as genuine.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 A civil authenticity dispute does not automatically establish criminal forgery. These provisions are conditional on proof of deliberate falsification and the required mental state.

✓ STRENGTHS & RIGHTS

1 The allegation that the final PDF was altered could support investigation if evidence shows intentional falsification.

✗ RISKS & OBLIGATIONS

1 Do not state forgery as established merely because authenticity is disputed.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Treat BNS as conditional; the primary question is evidentiary/authentication.

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